

25PR01385 Matter of The Delia Ybarra Living Trust

County: sonoma

Division: Probate

Hearing date: 2026-07-24

Motion: Petition to Remove Trustee Daniel Ybarra; Appoint Successor Trustee Without Bond; and Compel Accounting

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Petition to Remove Trustee Daniel Ybarra; Appoint Successor Trustee Without Bond; and Compel Accounting

Tentative Ruling: APPEARANCES REQUIRED to discuss obtaining verification for the petitioner's Case Management Statement (CMS) filed July 16, 2026, to discuss the appropriate successor trustee, and to discuss the issue of bond. The Court's concerns related to these issues are discussed below. If the petitioner can file a verification for the CMS and file a declination to serve from Bank of the West, it may help to avoid a continuance.

Per the petitioner's CMS, the respondent-trustee delivered an informal hand-written accounting along with some (but not all) relevant account statements/paperwork. The petitioner asserts that the records reflect that the trustee commingled trust assets with his personal assets, and that he issued himself checks totaling \$195,000.00 using trust funds. The petitioner also asserts the trustee mismanaged the mortgage over trust real property such that he incurred unnecessary interest expense. Given these new uncontested allegations the Court is inclined to remove the trustee. However, the CMS is not verified, so the CMS does not presently amount to competent evidence. See *Kulshrestha v. First Union Commercial Corp.* (2004) 33 Cal.4th 601, 609-612.

Further, regarding appointment of a successor, the Court must first resort to the provisions of the trust to determine the appropriate successor trustee. California Probate Code (Prob C) §15660(b). In this case, as the petitioner indicates he declines to serve, the appropriate trustee is Bank of the West Trust Department. Trust, 5.4. If Bank of the West declines to serve, the Court is inclined to appoint the nominee, Jack Ybarra, assuming he accepts the trust, but will require bond. The trust waives bond only for those people named as trustee in the trust. Trust, 5.6. The proposed successor trustee, Jack Ybarra, is not named in the trust. Therefore, if Jack Ybarra is appointed, bond will be required pursuant to Prob C §15602(a)(3). The Court understands that the primary trust asset is a \$2.4 million dollar home in San Jose, and there may be little to no cash assets. So, the Court will require a \$2.4 million dollar bond if Jack Ybarra is appointed.

If petitioner cannot obtain a declination to serve from Bank of the West prior to the hearing, the matter will likely need to be continued for that purpose.